



Reprinted
February 24, 2026

ENGROSSED SENATE BILL No. 271

DIGEST OF SB 271 (Updated February 23, 2026 5:39 pm - DI 106)

Citations Affected: IC 25-37.5; IC 34-24; IC 35-31.5; IC 35-43; IC 35-52.

Synopsis: Telecommunications equipment. Adds telecommunications network equipment to the definition of valuable metal. Provides that a person who suffers a pecuniary loss as a result of a violation of Indiana law governing valuable metal dealers may bring a civil action for specified damages against the person who caused the loss. Moves existing criminal penalties concerning valuable metals to the criminal code.

Effective: July 1, 2026.

Koch, Freeman, Pol Jr., Schmitt

(HOUSE SPONSORS — MCNAMARA, SOLIDAY)

January 8, 2026, read first time and referred to Committee on Corrections and Criminal Law.

January 13, 2026, amended, reported favorably — Do Pass.

January 15, 2026, read second time, ordered engrossed. Engrossed.

January 22, 2026, read third time, passed. Yeas 44, nays 1.

HOUSE ACTION

January 28, 2026, read first time and referred to Committee on Courts and Criminal Code.

February 19, 2026, amended, reported — Do Pass.

February 23, 2026, read second time, amended, ordered engrossed.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 271

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 25-37.5-1-0.7 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 0.7. (a) As used in this section,**
4 **"burned wire" means coated metal wire from which the protective**
5 **coating has been removed by smelting, burning, or melting.**
6 **(b) As used in this chapter, "telecommunications network**
7 **equipment" means:**
8 **(1) wire used in wireline or wireless communications service,**
9 **including:**
10 **(A) fiber; and**
11 **(B) cable consisting of six (6) or more twisted pairs of wire,**
12 **with or without sheathing;**
13 **including burned wire; and**
14 **(2) any component of equipment or infrastructure used to**
15 **provide telecommunications service, including:**
16 **(A) tower components;**
17 **(B) antennae;**

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1 (C) bus bars; and
 2 (D) copper ground support structures;
 3 and all associated aerial or ground based cable lines or equipment
 4 used as part of a telecommunications or broadband network.

5 SECTION 2. IC 25-37.5-1-1, AS AMENDED BY P.L.222-2013,
 6 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 7 JULY 1, 2026]: Sec. 1. (a) When used in this chapter, "valuable metal"
 8 means any product made of metal that readily may be resold. The term:

9 (1) includes metal bossies, **telecommunications network**
 10 **equipment**, and small component motor vehicle parts; and

11 (2) does not include the following:

12 (A) A beverage can.

13 (B) Used jewelry regulated under IC 24-4-13.

14 (C) Precious metal regulated under IC 24-4-19.

15 (b) As used in this chapter, "valuable metal dealer" means any
 16 individual, firm, corporation, limited liability company, or partnership
 17 engaged in the business of purchasing and reselling valuable metal
 18 either at a permanently established place of business or in connection
 19 with a business of an itinerant nature, including junk shops, junk yards,
 20 junk stores, auto wreckers, scrap metal dealers or processors, salvage
 21 yards, collectors of or dealers in junk, and junk cars or trucks. The term
 22 includes a core buyer. The term does not include a person who
 23 purchases a vehicle and obtains title to the vehicle.

24 (c) As used in this chapter, "purchase" means acquiring a valuable
 25 metal product for a consideration, but does not include purchases
 26 between scrap metal processing facilities (as defined in IC 8-23-1-36).

27 SECTION 3. IC 25-37.5-1-7, AS AMENDED BY P.L.70-2021,
 28 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 29 JULY 1, 2026]: Sec. 7. ~~(a)~~ A valuable metal dealer who fails to comply
 30 with this chapter commits a Class A infraction. **In addition, the**
 31 **valuable metal dealer may be subject to a criminal penalty under**
 32 **IC 35-43-4-3.3.**

33 ~~(b) A valuable metal dealer who:~~

34 ~~(1) knowingly or intentionally fails to comply with this chapter;~~
 35 ~~and~~

36 ~~(2) purchases stolen valuable metal;~~

37 ~~commits concealing a valuable metal purchase; a Level 6 felony.~~

38 SECTION 4. IC 34-24-3-1, AS AMENDED BY P.L.276-2019,
 39 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 40 JULY 1, 2026]: Sec. 1. If a person has an unpaid claim on a liability
 41 that is covered by IC 24-4.6-5 or suffers a pecuniary loss as a result of
 42 a violation of **IC 25-37.5**, IC 35-43, IC 35-42-3-3, IC 35-42-3-4,



IC 35-45-9, or IC 35-46-10, the person may bring a civil action against the person who caused the loss for the following:

- (1) An amount not to exceed three (3) times:
 - (A) the actual damages of the person suffering the loss, in the case of a liability that is not covered by IC 24-4.6-5; or
 - (B) the total pump price of the motor fuel received, in the case of a liability that is covered by IC 24-4.6-5.
- (2) The costs of the action.
- (3) A reasonable attorney's fee.
- (4) Actual travel expenses that are not otherwise reimbursed under subdivisions (1) through (3) and are incurred by the person suffering loss to:
 - (A) have the person suffering loss or an employee or agent of that person file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
 - (B) provide witnesses to testify in court proceedings related to the recovery of a judgment under this chapter.
- (5) A reasonable amount to compensate the person suffering loss for time used to:
 - (A) file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
 - (B) travel to and from activities described in clause (A).
- (6) Actual direct and indirect expenses incurred by the person suffering loss to compensate employees and agents for time used to:
 - (A) file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
 - (B) travel to and from activities described in clause (A).
- (7) All other reasonable costs of collection.

SECTION 5. IC 35-31.5-2-264.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 264.3. "Purchase", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 6. IC 35-31.5-2-326.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 326.5. "Telecommunications network equipment", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-0.7.**

SECTION 7. IC 35-31.5-2-345.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 345.5. "Valuable metal", for purposes of IC 35-43-4-3.3, has the meaning set forth in**



IC 25-37.5-1-1.

SECTION 8. IC 35-31.5-2-345.6 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 345.6. "Valuable metal dealer", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 9. IC 35-43-4-3.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3.3. (a) The following definitions apply throughout this section:**

(1) "Purchase" has the meaning set forth in IC 25-37.5-1-1.

(2) "Telecommunications network equipment" has the meaning set forth in IC 25-37.5-1-0.7.

(3) "Valuable metal" has the meaning set forth in IC 25-37.5-1-1.

(4) "Valuable metal dealer" has the meaning set forth in IC 25-37.5-1-1.

(b) A valuable metal dealer who:

(1) knowingly or intentionally fails to comply with IC 25-37.5-1; and

(2) purchases stolen valuable metal;

commits concealing a valuable metal purchase, a Level 6 felony.

SECTION 10. IC 35-52-25-61.5 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 61.5. IC 25-37.5-1-7 defines a crime concerning valuable metal dealers.~~



COMMITTEE REPORT

Mr. President: The Senate Committee on Corrections and Criminal Law, to which was referred Senate Bill No. 271, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 2, between lines 3 and 4, begin a new paragraph and insert:

"SECTION 2. IC 25-37.5-1-1, AS AMENDED BY P.L.222-2013, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) When used in this chapter, "valuable metal" means any product made of metal that readily may be resold. The term:

- (1) includes metal bossies, **telecommunications network equipment**, and small component motor vehicle parts; and
- (2) does not include the following:
 - (A) A beverage can.
 - (B) Used jewelry regulated under IC 24-4-13.
 - (C) Precious metal regulated under IC 24-4-19.

(b) As used in this chapter, "valuable metal dealer" means any individual, firm, corporation, limited liability company, or partnership engaged in the business of purchasing and reselling valuable metal either at a permanently established place of business or in connection with a business of an itinerant nature, including junk shops, junk yards, junk stores, auto wreckers, scrap metal dealers or processors, salvage yards, collectors of or dealers in junk, and junk cars or trucks. The term includes a core buyer. The term does not include a person who purchases a vehicle and obtains title to the vehicle.

(c) As used in this chapter, "purchase" means acquiring a valuable metal product for a consideration, but does not include purchases between scrap metal processing facilities (as defined in IC 8-23-1-36).".

Page 2, delete lines 25 through 42, begin a new paragraph and insert:

"SECTION 4. IC 25-37.5-1-11 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 11. A person may not sell or attempt to sell, and a valuable metal dealer may not purchase or attempt to purchase, telecommunications network equipment in any amount, unless:**

- (1) the seller is an authorized agent, representative, or employee of a telecommunications provider, broadband provider, or public utility;



(2) the seller:

(A) is authorized by the state to conduct business in Indiana;

(B) is an employee or authorized agent of a business that, in the normal course of operations, handles salvaged telecommunications network equipment, including building contractors and demolition firms; and

(C) presents to the valuable metal dealer for inspection a valid certificate of existence or good standing issued by the state; or

(3) the seller is a retail seller that possesses a certificate of ownership signed by an employee of the telecommunications company stating that the seller is the lawful owner of the telecommunications network equipment. This certificate of ownership must be provided on the telecommunications company business letterhead and must provide the date that the telecommunications network equipment was acquired by the seller and a description of how the telecommunications network equipment was acquired."

Page 3, delete lines 1 through 6.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 271 as introduced.)

FREEMAN, Chairperson

Committee Vote: Yeas 7, Nays 0.

COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred Senate Bill 271, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, line 8, after "wireline" insert "**or wireless**".

Page 1, delete lines 9 through 11, begin a new line double block indented and insert:

"(A) fiber; and

(B) cable consisting of six (6) or more twisted pairs of wire, with or without sheathing;"

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Page 2, delete lines 26 through 42, begin a new paragraph and insert:

"SECTION 2. IC 25-37.5-1-4, AS AMENDED BY P.L.224-2013, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. **(a)** Except as provided in section 5 of this chapter, every valuable metal dealer shall hold each purchase of valuable metal:

(1) requiring notification, for at least five (5) working days from the date of notification; **or**

(2) that is telecommunications network equipment, for at least thirty (30) calendar days from the date of purchase.

(b) A purchase described in subsection (a) shall be held:

(1) at the regular place of business of the valuable metal dealer; and

(2) separate and apart, so that it is readily identifiable from all other purchases.

(c) During ~~this~~ **the period described in subsection (b)**, a valuable metal dealer may not change the form of the valuable metal, and shall permit any law enforcement officer to make inspection of the valuable metal purchased.

SECTION 3. IC 25-37.5-1-7, AS AMENDED BY P.L.70-2021, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. ~~(a)~~ A valuable metal dealer who fails to comply with this chapter commits a Class A infraction. **In addition, the valuable metal dealer may be subject to a criminal penalty under IC 35-43-4-3.3.**

~~(b) A valuable metal dealer who:~~

~~(1) knowingly or intentionally fails to comply with this chapter; and~~

~~(2) purchases stolen valuable metal;~~

~~commits concealing a valuable metal purchase; a Level 6 felony."~~

Delete pages 3 through 7.

Page 8, delete lines 1 through 26.

Page 9, after line 18, begin a new paragraph and insert:

"SECTION 4. IC 35-31.5-2-264.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. **264.3. "Purchase", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 5. IC 35-31.5-2-326.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. **326.5. "Telecommunications network equipment", for purposes of IC 35-43-4-3.3, has the**



meaning set forth in IC 25-37.5-1-0.7.

SECTION 6. IC 35-31.5-2-345.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 345.5. "Valuable metal", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 7. IC 35-31.5-2-345.6 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 345.6. "Valuable metal dealer", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 8. IC 35-43-4-3.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3.3. (a) The following definitions apply throughout this section:**

- (1) "Purchase" has the meaning set forth in IC 25-37.5-1-1.**
- (2) "Telecommunications network equipment" has the meaning set forth in IC 25-37.5-1-0.7.**
- (3) "Valuable metal" has the meaning set forth in IC 25-37.5-1-1.**
- (4) "Valuable metal dealer" has the meaning set forth in IC 25-37.5-1-1.**

(b) A valuable metal dealer who:

- (1) knowingly or intentionally fails to comply with IC 25-37.5-1; and**
- (2) purchases stolen valuable metal;**

commits concealing a valuable metal purchase, a Level 6 felony.

SECTION 9. IC 35-52-25-61.5 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 61.5. IC 25-37.5-1-7 defines a crime concerning valuable metal dealers."~~

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 271 as printed January 14, 2026.)

MCNAMARA

Committee Vote: yeas 13, nays 0.

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HOUSE MOTION

Mr. Speaker: I move that Engrossed Senate Bill 271 be amended to read as follows:

Page 2, delete lines 27 through 42.

Page 3, delete lines 1 through 2.

Renumber all SECTIONS consecutively.

(Reference is to ESB 271 as printed February 19, 2026.)

ZIMMERMAN

